

9:00 AM

Line 5

25-CIV-02823 BRENDON FARRELL VS. ARA JABAGCHOURIAN

BRENDON FARRELL
ARA JABAGCHOURIAN

KURT E. WILSON
STEVE LEYDIKER

Defendant's Motion for Attorneys' Fees and Costs Pursuant to Code of Civil Procedure § 425.16(C)

TENTATIVE RULING:

Defendant Ara Jabagchourian has moved for attorney's fees and costs incurred in his successful Special Motion to Strike (Anti-SLAPP) in this matter and for attorney's fees for the instant fee motion.

Plaintiff Brendon Farrell has not opposed this motion.

Defendant's unopposed Motion for Attorney's Fees and Costs is tentatively GRANTED, in the amount of \$38,311.50, conditioned upon Defendant e-filing prior to the hearing a proof of service reflecting that this motion was timely served. If Defendant is unable to submit a proper proof of service, then the tentative ruling will be to DENY for lack of service. California Rules of Court, rule 3.1300(c).

Background

On April 24, 2025, Plaintiff filed a Complaint alleging defamation, false light, and related claims against Defendant. On June 4, 2025, Defendant filed an Anti-SLAPP motion seeking to strike the Plaintiff's Complaint. On October 28, 2025, this Court granted Defendant's Anti-SLAPP motion, striking Plaintiff's Complaint in its entirety.

On November 20, 2025, Plaintiff filed a Motion for Reconsideration of the Court's order granting Defendant's Anti-SLAPP motion. On December 22, 2025, Plaintiff filed a Notice of Appeal of the Court's order on the Anti-SLAPP motion. Plaintiff then withdrew his Motion for Reconsideration on December 23, 2025. However, Plaintiff's appeal was never heard. On February 9, 2026, Plaintiff filed an Abandonment of Appeal. And on March 5, 2026, the First Appellate District of the Court of Appeal issued a Remittitur dismissing Plaintiff's appeal for failure to pay the statutory fee required by California Rules of Court, rule 8.100(b)(1) and failure to file a Civil Case Information Statement after notice was given by appellate court clerk.

Legal Analysis

A “prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney’s fees and costs.” (Code Civ. Proc., § 425.16(c)(1).) This award is mandatory. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) The statute both discourages meritless lawsuits and compensates targets of SLAPP suits for the expense of defending their protected speech. (*Dove Audio, Inc. v. Rosenfeld, Meyer & Susman* (1996) 47 Cal.App.4th 777, 785; *Liu v. Moore* (1999) 69 Cal.App.4th 745, 750.) Because this Court granted Defendant’s Anti SLAPP motion in full, he is the prevailing party and entitled to fees as a matter of law. (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 338.)

Attorney’s fees awarded under § 425.16 include not only the time spent on the Anti SLAPP motion itself but also reasonable time spent preparing and defending the fee motion. (*Ketchum, supra*, 24 Cal.4th at p. 1141; *Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi* (2006) 141 Cal.App.4th 15, 21-22.)

California courts apply the “lodestar” approach to set fees under § 425.16(c): the number of hours reasonably expended multiplied by the reasonable hourly rate prevailing in the community for similar work. (*Ketchum, supra*, 24 Cal.4th at p. 1136.) The trial court may adjust the lodestar to reflect case complexity, skill displayed, and results achieved. (*Mann, supra*, 139 Cal.App.4th at p. 345.) The “reasonable market value of the attorney’s services is the measure of a reasonable hourly rate.” (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 640 fn. 31; *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1260.)

Defendant’s request for attorney’s fees includes fees for 68.2 hours of work performed on the Anti-SLAPP motion, broken down as follows:

- 3.2 hours: Multiple conferences with client and co-counsel regarding background facts, strategy, and procedural posture;
 - 2.6 hours: Review and analysis of Complaint and supporting exhibits to determine applicability of the anti-SLAPP statute;
 - 4.8 hours: Legal research regarding first and second prong SLAPP standards, litigation privilege (Civ. Code §47(b)), and case law interpreting public interest speech;
 - 12.6 hours: Review of trial transcripts in *Zhang v. Farrell* and preparation of detailed comparative chart analyzing statements published in the San Mateo Daily Journal and those made during trial, demonstrating the overlap and protected nature of the speech at issue;
 - 20.3 hours: Drafting and revising Memorandum of Points and Authorities in support of anti SLAPP Motion;
 - 2.1 hours: Preparation and revision of supporting declarations and exhibits;
 - 3.4 hours: Preparation of Request for Judicial Notice and compilation of supporting materials;
 - 1.1 hours: Drafting and editing Notice of Motion and related pleadings;
 - 1.5 hours: Review and analysis of Plaintiffs’ Opposition to anti-SLAPP Motion;
 - 14.7 hours: Drafting and revising Reply Memorandum in support of anti-SLAPP Motion, including factual clarifications and supplemental authority;
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1.0 hours: Review of tentative ruling and preparation for oral argument; and
0.9 hours: Attendance at and presentation of oral argument before the Court.

(Leydiker Decl., ¶¶ 4, 5.)

Defendant's request for attorney's fees includes fees for 7.1 hours for work performed on the instant fee motion, broken down as follows:

2.2 hours: Review of billing records, compilation of time entries, and preparation of supporting declarations; and
4.9 hours: Legal research and drafting of Memorandum of Points and Authorities in support of Motion for Attorneys' Fees and Costs.

(Leydiker Decl., ¶¶ 5, 6.) Defendant's counsel further anticipates 10.0 hours to review any opposition by Plaintiff and draft a reply. (Leydiker Decl., ¶ 6.)

As to the level of detail of the time spent as set forth in Defendant's counsel's declaration (Leydiker Decl., ¶¶ 4, 5 & 6), the Court of Appeal explains that, "Because time records are not required under California law ..., there is no required level of detail that counsel must achieve." (*Syers Props. III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 699 (*Syers*) (citation omitted).) In *Syers*, each of the billing attorney's declarations under penalty of perjury:

summarized his hours billed to defendants within several specific litigation categories, including the total hours spent in: "Fact investigation and general conferences and correspondence"; "Development of case analysis and strategy"; "Legal research"; "Expert and/or consultant work"; "Status reports to client and carrier"; "Draft pleadings and papers, and other case assessment and development"; "Settlement discussions and mediation"; "Written and document discovery"; "Party, percipient and expert depositions"; "Trial preparation and support, including witnesses and exhibit preparation and examinations"; "Trial motions and submissions"; "Court appearances, including trial"; and "Attorneys' fee motion."

(*Syers, supra*, 226 Cal.App.4th 691, 694-95.) These categories resemble those of the Leydiker Declaration.

The Court finds Defendant's request for 68.2 hours of work on the Anti-SLAPP motion and 7.1 hours of work on the instant fee motion to be reasonable. Because this motion is unopposed, the Court declines to include the 10 additional hours estimated by Defendant's counsel to reply here, despite that Defendant filed a notice of non-opposition and reply.

Defense counsel's hourly rate is \$500.00 per hour. (Leydiker Decl., ¶ 2.) Counsel declares that he has been practicing law in California since 2011, with a focus on civil litigation, including complex trust and estate disputes and related motion practice, and his experience also includes handling multiple Anti-SLAPP motions and other dispositive matters in both trial and appellate courts. (*Ibid.*) The Court finds Counsel's rate of \$500.00 per hour to be reasonable for an attorney of his experience and for the work performed.

Defendant also incurred costs totaling \$661.50, which include first appearance fees, filing fees for the Anti-SLAPP motion and supporting papers, and filing fees for the Reply and related documents. (Leydiker Decl., ¶ 8.) The Court finds these costs to be reasonable.

Accordingly, the Court tentatively GRANTS Defendant's Motion for Attorney's Fees and Costs, in the amount of \$37,650.00 in attorney's fees (73.5 hours at \$500.00 per hour) and \$661.50 in costs – for a total award of **\$38,311.50**, conditioned upon Defendant e-filing prior to the hearing a proof of service reflecting that this motion was timely served. A courtesy copy of said proof of service should also be sent directly via email to Dept. 20, in the afternoon or evening on the date of when this tentative is posted, i.e. before the hearing.

Considering the above, counsel is directed to appear and this tentative ruling is deemed contested without further notice. The tentative ruling as modified at the hearing, will require an Order after hearing pursuant to CRC Rule 3.1312 as the Court will direct at the hearing.

9:00 AM

Line 6

25-CIV-02842 JON ROMERO, ET AL VS. NORTH CAL SECURITY INC., ET AL

JON ROMERO
NORTH CAL SECURITY INC.

JOSHUA I WHITE
ADOLFO MEDIANO

Defendants' Motion to Quash Service of Summons; Motion to Set Aside Clerk's Default and Default Judgment, Request for Sanctions

TENTATIVE RULING:

Defendants North Cal Security, Inc.'s and Dennis R. Mediano, Sr.'s Motion to Quash Service of Summons and Motion to Set Aside Clerk's Default and Default Judgment is GRANTED in part and DENIED in part.

Defendants North Cal Security, Inc.'s and Dennis R. Mediano, Sr.'s Request for Judicial Notice is GRANTED.

As a preliminary matter, Defendants North Cal Security, Inc. and Dennis R. Mediano, Sr. have failed to electronically bookmark the exhibits submitted in support of the motion, in violation of the California Rules of Court. (See Cal. Rules of Court, rule 3.1110(f)(4).) All parties are advised that further violations of the California Rules of Court are subject to sanction. (See *id.*, at rule 2.30.)

On September 12, 2025, the clerk entered the defaults of Defendants North Cal Security, Inc. ("North Cal") and Dennis R. Mediano, Sr. The default judgment against them was subsequently entered on February 10, 2026. Here, North Cal and Mediano seek to set aside the defaults and default judgment on the grounds that they are void for lack of jurisdiction. (See Code Civ. Proc., § 473, subd. (d) ["court ... may, on motion of either party after notice to the other party, set aside any void judgment or order"].) They further seek to quash the service of the summons upon them.

A court does not gain jurisdiction over a defendant by mere notice but by proper service of the summons and complaint. (*Independent Bankers Trust Co. v. Superior Court* (1982) 138 Cal.App.3d 238, 241.) Proper service means "compliance with the statutes governing service of process," and it is "essential to establish that court's personal jurisdiction over a defendant." (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1439.) "Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void." (*Id.*, at p. 1444.)

North Cal and Mediano contend that the Court lacked personal jurisdiction over them because the purported substituted service of process on them was defective in two respects: (1) the copies of the summonses served did not specify who in particular was being served nor the capacity in which the person was being served and (2) the papers were not mailed to the business address of North Cal's agent for service of process.
